F03 — Counsel & Regulator Preparation Annex

Legal issue list, clarification questions and proposed contract clause checklist | pre-appointment working draft

NOT APPROVED FOR EXTERNAL CIRCULATION

This is an internal question and drafting kit. Any formal NBE, ECA or INSA correspondence must be approved and sent by authorised PSS officials after appointment.

A. Questions for PSS Legal and NBE liaison

Topic	Formal question to resolve
Payments perimeter	Does PSS switch licence and its 2026 POS/gateway permissions expressly cover processing, operating and reselling a bank-scoped evidence/reconciliation utility for third-party merchant payments?
Outsourcing classification	What bank outsourcing and critical-function treatment applies when PSS hosts bank merchant transaction statuses, casework and reconciliation?
Multi-bank access	Are separate consents/approvals required per source bank, scheme, EthSwitch/QR participant or acquiring relationship?
Payment status terms	What legally approved status language and merchant disclaimers are needed to avoid implying settlement or irrevocability?
Data purposes	For each use case which party determines means/purpose? Is PSS a processor, independent controller or joint controller?
Registration / DPIA	What current ECA registration, DPO, privacy notice, records of processing, DPIA and breach procedures are required?
Cross-border	What restrictions and formal approvals apply to foreign hosting, logs, support staff or disaster recovery?
Critical infrastructure	Has PSS been designated under Proclamation 1426/2026? What software/vendor clearances and reporting obligations apply?
Consumer complaints	Which financial provider must respond and grant redress; how does PSS supply case evidence within the contractual SLA?
Related party	Which governance and competitive safeguards apply if PSS Trading is engaged for software, cybersecurity or hosting?

B. Minimum PSS–bank service agreement schedules

Annex	Requirements to draft before contracting
Service boundary	Prohibited funds, KYC, ledger and unilateral remedy actions; exact event feeds and authorised service outputs.
Service levels	Definitions of reporting periods, reconciliation timeliness, unknown-payment case ageing; exclusions and remedies.
Financial responsibility	Authoritative status source, chargeback/dispute instructions, cutoffs, warranties and liability apportionment.
Privacy and data	Processing schedule, controller roles, purposes and notices, retention, encryption, rights requests, subprocessor approval.
Security and incident	Audit rights, critical-vulnerability policy, incident notification

Annex	Requirements to draft before contracting
	matrix, national CERT/ECA/NBE obligations where applicable.
Change control	Schema/rule changes, new banks/channels, regulatory changes, approved re-certification and support ownership.
Termination and exit	Portability, documented export format, backups/data return and deletion, support transition and records retention.
Related-party disclosure	Procurement/conflict procedures and proof of independent terms if PSS Trading involved.

C. Consultation memo cover sheet - intentionally blank

Field	To be completed by authorised PSS officer
Regulatory addressee	NBE / ECA / INSA - specific unit to be confirmed
Institutional sender	PSS Legal/Compliance with CEO-approved signatory
Purpose	Request written clarification on specific authorised facts, not a broad project endorsement
Attached materials	Service boundary note, role matrix, data map, licence extracts, targeted legal questions
Approved internal owner	OPEN
Issue date	OPEN
External correspondence permission	NOT AUTHORISED
Response and evidence ID	OPEN

D. Activation record

Record actual licences, signed contracts, bank authorisations, DP registration proof (if applicable), designation letters, legal opinions and verified reporting obligations in F03-R01. None has been obtained in this pre-appointment package.